

DISTRICT-Chattogram

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Bashir Ahammad and another

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Mohammad Jahirul Islam, Advocate

.... For the accused-Petitioner

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 28th January 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

Mr. Mohammad Jahirul Islam, learned Advocate for the petitioner prays for his bail on the ground of long custody since 29.09.2023.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the state raises objection against granting of bail to the petitioner.

It turns out from the record that in this case under table 10(Ga) of Sections 36(1)/41 of the Madok Drobbya Niontran Ain, 2018 3,96,000 pieces of yaba tablets were recovered from a fishing boat at the showing and pointing of the petitioner in presence of the witnesses.

On consideration of above materials on record we hold that the ends of justice will be met if instead of granting bail to the accused-petitioner at this point of time a direction is issued upon the trial Court for expeditious disposal of the case or in default consider the petition for bail.

Accordingly, we are directing the learned Additional Metropolitan Session Judge, 2nd Court, Chattogram to conclude the trial of the case within 6(six) months from the date of receipt of this order or in default consider the petition for bail of the accused-petitioner, if any, sympathetically and in accordance with law.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

Md. Masudur Rahman
Bench Officer